

CONFIDENTIALITY, NON-USE AND NON-DISCLOSURE AGREEMENT

This confidentiality, non-use and non-disclosure agreement ("Agreement") is entered into as of 07/21/22 by and between Carlos Martín Dávila, an individual with his/her office located at S/c de Tenerife , phone (____) ____ - ____ email carlos.martin@casualbrothers.com ("Individual") and Escape Velocity, Inc, with offices located at 2796 Critz Lane, Thompson's Station, TN 37179, phone (____) ____ - ____ ("Escape Velocity"). For convenience Individual and Escape Velocity are sometimes referred to herein as the "parties" and each a "party."

In consideration of the mutual covenants and promises set forth in this Agreement and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. **Purpose.** Escape Velocity and Individual wish to explore or engage in a mutual business opportunity whereby Escape Velocity may disclose its Confidential Information to Individual, it being understood that Escape Velocity has no obligation to disclose any information, including, without limitation, information in connection with the business discussions or the disclosure of Confidential Information.

2. **Definition of Confidential Information.**

2.1 "Confidential Information" means any or all knowledge, information, materials, technical data or know-how, including, without limitation, any or all trade secrets; inventions; designs, algorithms, concepts, ideas, discoveries, research and development; creative properties; content; technology (including, without limitation, the features, functionality, design, structure, elements and code of any Escape Velocity products, services, systems and/or components); intellectual property assets; third party content or third party intellectual property under the possession or control of a party that is subject to an obligation of confidentiality; financial or business plans and affairs, financial statements, internal management tools and systems; audit analysis and results, client, customer, employee, contractor and supplier information; organization information and internal communications, communications with clients, partners, prospects or government agencies; opportunities and pricing; business plans; financial information; products and product development plans; marketing plans; contracts; computer programs, software (in source or object form), mechanical and electronic hardware, and other technology; product roadmaps; technical specifications, data, flow charts, procedures, application programming interfaces (API's), documentation, formulas and drawings; dramatic, graphic, literary and musical material and sound recordings; any term or condition of any agreement between Escape Velocity and/or its parent, subsidiary or affiliated entities ("Affiliates") and any individual or entity; this Agreement, its terms and the existence of any discussions among the parties; any other information, the unauthorized disclosure of which could be detrimental to the interests of Escape Velocity; and, any derivatives of any of the foregoing, and regardless of whether such is provided in oral, written, electronic, digital or machine-readable form or regardless as to whether such is identified as confidential at the time of disclosure, and whether obtained by Individual directly or indirectly from any source.

2.2 For the purposes of this Agreement, "Confidential Information" does not include any information or material which, (a) is in the possession of Individual at the time of disclosure as shown by Individual's files and records immediately prior to the time of disclosure, (b) was or hereafter becomes part of information in the public domain through no fault, act or omission of Individual, or (c) becomes available to Individual on a non-confidential basis from a third party which, in Individual's good faith belief, is not, at the time such material is provided, under any conflicting legal obligation to Escape Velocity or any of its Affiliates and did not learn of such information through any improper or illegal means. Notwithstanding the aforementioned, Individual will take all necessary measures to protect the secrecy of and avoid disclosure or use of Confidential Information in order to prevent it from falling into the public domain or the possession of persons or entities other than those persons or entities authorized hereunder to have any such Confidential Information.

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3. **Non-Use and Non-Disclosure of Confidential Information.** Individual agrees on behalf of his/herself and his/her respective employees, agents, contractors, or professional advisors ("Representatives"), not to

use the Confidential Information for his/her own use or for any purpose except to carry out discussions concerning, and the undertaking of, any business relationship between the two parties. Individual also agrees, that during the term of this Agreement, and for an unlimited time thereafter, he/she will: (a) strictly regard and preserve as confidential all Confidential Information; (b) not use Confidential Information for his/her own purpose or for any purpose or for its benefit and shall only use such Confidential Information to the extent necessary to evaluate the possibility of, or in furtherance of, the parties' possible or actual business relationship; and, (c) not modify, alter, translate, reverse engineer, disassemble, create derivative works of, or decompile any prototypes, software or other tangible objects that embody any Confidential Information. Without limiting the foregoing, Individual further agrees that Escape Velocity's Confidential Information may only be disclosed to its Representatives who have a strict need to know of such Confidential Information for purposes of this Agreement, without the consent of Escape Velocity, provided that Individual will inform all such Representatives to whom it desires to disclose Confidential Information (or who otherwise have access to such Confidential Information) of the confidentiality provisions of this Agreement and obtain a written agreement from such Representatives to abide by such provisions, except where such obligation already exists by reason of a prior agreement or relationship (and such prior agreement or relationship is at least as protective of the Confidential Information as are the terms and conditions of this Agreement). Individual will be liable for all acts and omissions of each Representatives to which he/she discloses Confidential Information. Individual will immediately notify Escape Velocity in the event of any unauthorized use or disclosure of any Confidential Information.

4. Mandatory Disclosure. In the event that Individual or any of his/her respective Representatives are required by legal process to disclose any Confidential Information, Individual shall give prompt notice so that Escape Velocity may seek a protective order or other appropriate relief, and Individual and his/her Representatives will cooperate and assist with Escape Velocity's efforts to seek a protective order or other appropriate relief. In the event that such protective order or relief is not obtained, Individual (or his/her Representatives) will disclose only that portion of the Confidential Information which his/her legal counsel advises is the minimum amount that he/she is legally required to disclose (in order to comply with a valid order of a court of competent jurisdiction) and to exercise reasonable efforts to obtain assurance that any such disclosed Confidential Information will be kept confidential, including, without limitation, his/her own efforts to obtain a protective order in advance of any disclosure of any Confidential Information. In the event that Escape Velocity is obligated to produce or disclose Confidential Information on Individual's behalf (whether or not a protective order was sought or secured), such as in response to legal process, discovery or otherwise and including e-discovery, among other forms of disclosure or discovery, all of Escape Velocity's reasonable costs and expenses of so disclosing, including, without limitation, the cost of hiring third parties and outside vendors to assist with such disclosure, shall be promptly reimbursed by Individual.

5. No Copies; Return of Materials. Confidential Information shall not be copied, reproduced in any form or stored in a retrieval system or database by or on behalf of Individual without the prior written consent of Escape Velocity (except for such copies and internal on-site storage as may reasonably be required by Individual in furtherance of the business purpose being discussed). Any materials or documents that have been furnished by one party to the other (or to Individual's Representatives or to either Escape Velocity's Affiliates or any of Escape Velocity's or its Affiliates' employees, contractors, consultants, directors, officers, shareholders, investors, members, or professional advisors), or that contain or represent Confidential Information (and *all* copies thereof, including, without limitation electronic, intangible, machine readable or any other copy not in tangible form), will be immediately returned to the other party and permanently deleted from all retrieval systems and data bases upon the earlier of the other party's written request or the expiration of this Agreement or at any time that the receiving party decides not to proceed with the possible business purpose or transaction involving the other party. Any summaries, reports, compilations, analyses or other documents prepared by or on behalf of Individual that rely upon or reflect any Confidential Information will be destroyed. If requested by Escape Velocity in writing, copies of Confidential Information may be destroyed (as opposed to returned) and Individual will certify to Escape Velocity in writing that such destruction has occurred. Without limiting the aforementioned, in the event that any Confidential Information is reproduced in any manner, such reproduction is and will remain the property of Escape Velocity, and will include any and all confidential or proprietary notices or legends that appear on the original (unless otherwise authorized in writing by Escape Velocity).

6. Ownership Rights Confirmed; No License Granted; No Implied Contract or Obligation to Disclose. All right, title and interest in and to the Confidential Information, including, without limitation, all intellectual

property and proprietary rights in and to any of the Confidential Information, shall be and remain the exclusive property of Escape Velocity and shall be held in trust and confidence by Individual for Escape Velocity. Nothing in this Agreement is intended to grant any rights to Individual under any patent, copyright, trade secret or other intellectual property right nor shall this Agreement grant Individual any rights in or to the Confidential Information, except the limited right to review such Confidential Information solely for the purposes of determining whether to enter into the proposed business relationship with Escape Velocity. No express or implied contract and no obligation of any kind, other than those expressly arising from this Agreement, exist or may be implied by reason of Individual's review of any Confidential Information. Nothing in this Agreement obligates Escape Velocity to make any particular disclosure of Confidential Information or disclose any information or materials of any kind.

7. Confidential Information "As Is"; Warranty Disclaimer. ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS." ESCAPE VELOCITY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE AND MAKES NO OTHER REPRESENTATIONS OR WARRANTIES WHATSOEVER, EXPRESS, IMPLIED, OR OTHERWISE, REGARDING THE ACCURACY, COMPLETENESS, USEFULNESS, SUITABILITY, FUNCTIONALITY, SAFETY OR PERFORMANCE OF ANY CONFIDENTIAL INFORMATION. INDIVIDUAL UNDERSTANDS AND ACKNOWLEDGES SUCH DISCLAIMER AND ACCEPTS ALL RISK OF USE AND RELIANCE ON THE CONFIDENTIAL INFORMATION. Individual acknowledges and agrees that neither Escape Velocity nor any of its Affiliates or their respective employees, contractors, consultants, directors, officers, shareholders, investors, members, or professional advisors will have any liability to Individual or his/her Representatives resulting from his/her or their use of the Confidential Information or from any errors or omissions in the Confidential Information. Only those representations and warranties which are made in a final definitive agreement regarding the proposed transaction, if any, when, as and if signed by each party, will have any legal effect.

8. Similar Business Undertakings and Discussions. It is understood that Individual and Escape Velocity may each be in discussions with other parties regarding matters and possible business relationships that may be similar to those discussed pursuant to this Agreement. Nothing in this Agreement shall: (a) prohibit either Escape Velocity or Individual from undertaking operations similar to those undertaken by the other or from discussing with third parties matters and possible business relationships which may be similar to those discussed pursuant to this Agreement, so long as such undertakings and discussions do not violate the terms hereof; or (b) obligate either Escape Velocity or Individual to proceed with any transaction between them. Nothing contained in this Agreement shall limit the terms and conditions of any other nondisclosure, confidentiality or other agreement by and between Escape Velocity and Individual.

9. Term. The foregoing commitments of each party in this Agreement shall survive any termination of discussions between the parties, and shall continue indefinitely thereafter, for so long as the information remains Confidential Information under Section 2. Notwithstanding anything to the contrary, Individuals confidentiality, non-disclosure and non-use obligations with respect to any Confidential Information that may be a trade secret of Escape Velocity will continue perpetually.

10. Governing Law and Jurisdiction. This Agreement shall be governed by and construed and enforced in accordance with the laws of the United States of America and the State of California, and shall be binding upon the parties hereto worldwide. Except for claims for injunctive or other equitable relief, which may be brought in any court of competent jurisdiction, the applicable state or federal court in the County of San Francisco, California shall have exclusive jurisdiction to adjudicate any dispute arising out of this Agreement.

11. Remedies. Individual agrees for his/her self and on behalf of his/her Representatives, that their respective obligations hereunder are necessary and reasonable in order to protect the other party and the other party's business and that the Confidential Information constitutes valuable trade secret information which confers a competitive advantage and that any unauthorized disclosure or use would cause irreparable harm and significant injury, for which remedies at law will be inadequate. Accordingly, Individual agrees for his/her self and on behalf of his/her Representatives that, in addition to any other remedies that may be available, in law, in equity or otherwise, Escape Velocity shall be entitled to obtain injunctive relief against the threatened breach of this Agreement or the

continuation of any such breach, without the necessity of proving irreparable harm or actual damages or posting any bond or other security.

12. Miscellaneous.

12.1 No Assignment. This Agreement shall be binding upon and for the benefit of the undersigned parties, their successors and assigns. Individual agrees not to assign this Agreement or any of the rights granted to Individual in this Agreement without the prior written consent of Escape Velocity. Escape Velocity may freely assign this Agreement or any right granted to it in this Agreement without limitation or condition.

12.2 No Waiver. Failure or delay to enforce any provision of this Agreement shall not constitute a waiver of any term of this Agreement or such party's right to subsequently enforce such provisions.

12.3 Entire Agreement; Signed Writing Required for Modification. This Agreement contains the entire agreement of the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous oral and written agreements, negotiations, understandings and communications regarding such subject matter. No waiver or modification of any of the provisions of this Agreement shall be valid unless in writing and signed by both of the parties.

12.4 No Joint Venture. The parties agree that no joint venture, partnership or other fiduciary relationship shall be deemed to exist or arise between them with respect to this Agreement or any possible business relationship or any obligation of the parties to enter into any agreement relating to the business discussions.

12.5 Interpretation. The language of this Agreement shall be construed simply and according to its fair meaning, and shall not be construed for or against any party as a result of the source of draftsmanship. Headings are for purposes of convenience and have no interpretative meaning.

12.6 Severability. Should any provision of this Agreement be determined to be void, invalid or otherwise unenforceable by any court or tribunal of competent jurisdiction, such determination shall not affect the remaining provisions hereof which will remain in full force and effect.

12.7 Notices. Any notices required or permitted by this Agreement will be in writing and sent to the parties by either personal delivery or recognized overnight carrier at the respective address first provided above, or such alternative address to which notice will be provided in accordance with this section. Notices shall be deemed received on the date when actually delivered.

12.7 Counterparts. This Agreement may be executed in one or more counterparts, each of which will be deemed an original, but all of which will constitute but one and the same instrument. This Agreement may be executed by electronic means, such as DocuSign or like process, facsimile or electronic file copy, or an exchange of .pdf's, and any such electronic copy (e.g., DocuSign, facsimile or electronic file copy) of a party's signature shall be treated for all purposes as an original.

AGREED TO AND ACCEPTED:

Escape Velocity Entertainment, Inc.

"Individual"

By: _____

(sign name here): Carlos Martín Dávila

Name: _____

(print name here): _____

Title: _____

Date: 07/21/22

Date: _____

MARTIN
DAVILA
CARLOS DAVID
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por MARTIN DAVILA
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